

under the *Drainage Acts*, that as the sale can only be made subject to the charge, the exercise of the power will confer a benefit on the tenant for life, for *before* the sale he is bound by the Acts to pay not only the interest on the charge, but also part of the principal, but *after* the sale he becomes under the settlement tenant for life of the whole proceeds.

[20. **At the request and by the direction of tenant for life.** — Where the power of sale was given to the trustees “at the request and by the direction of” the tenant for life, the Court refused to restrain a sale although no immediate reinvestment was contemplated, being of opinion that the tenant for life had a right to call upon the trustees to sell, and that they had no right to refuse his request (*d*).

21. **Settled Land Act.** — Under the Settled Land Act, 1882, the power of sale is given to the tenant for life, and may be exercised by him without reference to any prospective reinvestment of the purchase-money in the purchase of another estate. In fact there is no restriction whatever in the Act on his power of sale, which, subject to the giving of certain notices (*e*), may be exercised by him, on any grounds which he thinks sufficient, without any liability on his part, to justify \*the grounds, and without any [\*429] power in the trustees of the settlement or in the Court to interfere with his power of sale so long as the same is honestly and properly exercised (*a*). It must however be borne in mind that the tenant for life is under the 53d section “in relation to the exercise of any power under the Act, to be deemed in the position and to have the duties and liabilities of a trustee for all parties entitled under the settlement,” and it is conceived that the effect of this is to put the tenant for life in the position of a trustee with a power of sale exercisable in all respects at his absolute discretion, and to make the exercise of the power subject to the control of the Court in all cases in which the tenant for life is influenced by dishonest or improper motives (*b*).

[(*d*) *Thomas v. Williams*, 24 Ch. D. 558.]

[(*e*) 45 & 46 Vict. c. 38, s. 45; 47 & 48 Vict. c. 18, s. 5.]

[(*a*) *Wheelwright v. Walker*, 23 Ch. D. 752.]

[(*b*) As to the control of the Court over the exercise of powers, see *post*,